IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

In the matter of an Appeal against the Judgement of the High Court under and in terms of Section 331 of the Code of Criminal procedure Act No. 15 of 19791

Commission to Investigate Allegations of Bribery or Corruption

Complainant

CA HCC 0085/22

High Court of Colombo
Case No. HC/2059/2015

Vs.

Rajanayake Mudiyanselage Sumith

Bandara Rajanayake

Accused

AND NOW BETWEEN

Rajanayake Mudiyanselage Sumith

Bandara Rajanayake

Accused-Appellant

Vs,

Commission to Investigate Allegations of Bribery or Corruption

Respondent

Before: **B. Sasi Mahendran. J,**
Amal Ranaraja. J,

Counsel: Anura Meddegoda, PC with Nadeesha Kannangara and Prabodhinee Nissanka for the Accused-Appellant.

Sharanya Jeyarajah, Assistant Director Legal with Dhushmanthi Rajapaksha, Assistant Director General for the Complainant-Respondent

Argued on: 05.03.2026

Judgment on: **27.03.2026**

Judgment

Amal Ranaraja. J,

1. The accused-appellant (hereinafter referred to as the appellant) has been indicted in High Court of Colombo in High Court Case No. HCB 2059/14. The charges in the indictment are as follows;

    01. On or around the 03rd of February, 2012, within the jurisdiction of this Court, in *Thalathuoya*, you as a public servant, the Chairman of the *Pathahewaheta Pradeshiya Sabawa*, solicited a gratification of LKR 25,000.00 from *Subrameniyam Puvanendru Raja,* in order to be deterred from invalidating the license relating to the application, bearing No. 15777, for a license to sell fish from a mobile vehicle issued for the year 2012, by the *Pathahewaheta Pradeshiya Sabawa* to one *Osaka Olivia Nanayakkara.* Thereby, you have committed an offence punishable under Section 19(b) of the Bribery Act.

    02. In the time, place, and course of action of the above first charge, you as a public servant, the Chairman of the *Pathahewaheta Pradeshiya Sabawa,* by soliciting a sum of LKR 25,000.00 from

Subrameniyam Puvanendru Raja, have committed an offence punishable under Section 19(c) of the Bribery Act (as amended).

03. On or around the 03rd of February, 2012, within the jurisdiction of this Court, in *Thalathuoya*, you as a public servant, the Chairman of the *Pathahewaheta Pradeshiya Sabawa*, accepted a gratification of LKR 25,000.00 from *Subrameniyam Puvanendru Raja,* in order to be deterred from invalidating the license relating to the application, bearing No. 15777, for a license to sell fish from a mobile vehicle issued for the year 2012, by the *Pathahewaheta Pradeshiya Sabawa* to one *Osaka Olivia Nanayakkara.* Thereby, you have committed an offence punishable under Section 19(b) of the Bribery Act.

04. In the time, place, and course of action of the above third charge, you as a public servant, the Chairman of the *Pathahewaheta Pradeshiya Sabawa,* by soliciting a sum of LKR 25,000.00 from *Subrameniyam Puvanendru Raja,* have committed an offence punishable under Section 19(c) of the Bribery Act (as amended).

2. At the conclusion of the trial the Learned High Court Judge has convicted the appellant of the second and fourth charges and acquitted him of the first and third charge. Upon conviction the appellant has been sentenced as follows;

   i. Fine of Rs. 5000/- each in respect of the second and fourth charges with a term of 1 year simple imprisonment each in default. Further, has also imposed a term of three years rigorous imprisonment each, with such terms of imprisonment to run concurrently. The appellant has also been directed to pay a sum of Rs. 25,000 as a fine as per the terms in Section 26 of the Bribery Act, with a term of 1 year simple imprisonment in default.

3. The appellant being aggrieved by the conviction, disputed judgement together with the sentencing order has preferred the instant appeal t0 this Court.

Case of Prosecution

4. PW01 a mobile fishmonger has been operating from a lorry in the *Marassana* town, when he had been approached by the appellant, the chairman of the *Pathahewaheta Pradeshiya Saba*, on the day of the incident. The appellant has questioned PW01 about his business operations and whether PW01 possessed a valid license.

5. PW01 has informed the appellant that the business operated under a license obtained by his wife. Subsequently, the appellant has allegedly threatened to revoke the license if PW01 did not comply with his demand (solicitation) for a sum of LKR 25,000.00.

6. Following this PW01 has made a complaint to the Commission to Investigate Allegations of Bribery or Corruption (CIABOC). CIABOC officers have then conducted a raid resulting in the appellants arrest upon accepting the demanded sum of LKR 25,000.00 from PW01.

Case of the Appellant

7. The appellant has asserted that he held the position of chairman of the specific *Pradeshiya Saba* during the period in issue. That while enroute to work, he has observed PW01 engaged in the occupation of a mobile fishmonger. Upon inquiry the appellant has discovered that PW01 was conducting this business without a license. Consequently, he has cautioned PW01 against continuing such an unlicensed activity. The appellant has denied soliciting any gratification from PW01 and has maintained that he has been falsely implicated in the matter.

8. The learned PC appearing on behalf of the appellant has asserted the circumstances outlined in the charges pertain to an alleged threat to cancel a license. However, given the High Court's prior finding that such a license was never actually issued, the learned PC maintains that the appellant cannot be convicted of the second and fourth charges either. This contention rests on the argument that there can be no engagement by an individual acting as a public servant in the cancellation of a license that does not exist.

9. Section 19(c) of the Bribery Act No. 11 of 1954 (As Amended) is as follows;

> **19.** A person –
>
> (c) who, being a public officer, solicits or accepts any gratification shall be guilty of an offence punishable with rigorous imprisonment for a term of not more than seven years and a fine not exceeding five thousand rupees:
>
> Provided, however, that it shall not be an offence for a public officer to solicit or accept any gratification which he is authorized by law or the terms of his employment to receive;
>
> Provided further that section 35 of the Medical Ordinance shall not entitle a medical practitioner who is a public officer to solicit or accept any gratification.

10. Mr. R. K. W. Goonesekere in his book "BRIBERY A STUDY IN LAWMAKING AND OF THE CRIMINAL PROCESS", has discussed the application of the provisions in section 19(c) of the Bribery Act detailing it as follows;

"Taken literally the prohibition here stated on accepting a gratification, as defined in the Act is almost absolute and can cover innocent presents. TS Fernando J in Karunaratne v Queen (1966) 69 NLR 10, was somewhat troubled by the wide sweep of the acts which would become criminal and attempted to control the operation of the clause by holding that the word 'gratification' throughout the Act carries with it a sinister and not innocent connotation. He added,

> *"If the words 'any gratification which he is not authorised by law or the terms of his employment to receive' are given the widest possible interpretation of which they are capable, then a public servant who accepts a personal gift from a friend, relative or neighbour, or for that matter a birthday gift from his wife, would be guilty of an offence under the Act. It would be absurd to have to reduce oneself to the position that such gifts are within the mischief which the Act was designed to punish."*

Here is an echo of the reasoning which swayed the framers of the Draft Code not to have a law against taking of presents, more than 100 years earlier. What Fernando J thought was penalised by s.19 (c) was soliciting or accepting a gratification other than legal remuneration. By way of further explanation, he said:

> *"The mischief which this part of the section was designed to prevent is that of soliciting or accepting a gratification when acting as a public servant in his capacity of a public servant upon the performance of his duties as such public servant."*

11. Also, a general rule of law, the burden of establishing that the proviso to a law applies to a given situation lies on the party seeking to rely on that proviso.

12. While the prosecution bears the initial burden of proving that an offence was committed, or a right was violated, the proviso acts as a special exemption, exception, or qualification to the main rule. Therefore, the person seeking to escape liability or gain a benefit from that exception must prove that they fall within its scope.

13. He who alleges must prove; the party asserting a special, favourable or exceptional circumstance (the proviso) has the obligation to produce evidence of it. If the facts required to prove the proviso are specifically within the knowledge of one party, that party bears the burden of proving them. Further a proviso is generally read inrelation to the main clause to which it is a proviso. It is not a separate, independent clause, but a qualification of the main rule.

14. In these circumstances, the prosecution would need to establish that an appellant (accused), while acting as a public servant in the performance of his duties solicited and accepted the gratification. Conversely, the appellant (the accused), would then have to demonstrate that the specific conditions outlined in the proviso in s. 19 (c) apply to his situation.

15. PW05, *Mrs. R.M.P Rathnayake*, who served as the secretary of the *Pathehewaheta Pradeshiya Saba* during the relevant period has testified that the appellant was elected as the Chairman of the *Pradeshiya Saba* in March 2011. Furthermore, PW05 has identified an application (marked *පැ 01*) that has been submitted to the *Pradeshiya Saba* by the wife of PW01. By this application, she has sought a license to operate a mobile fish trading business in the year 2012. PW05 has also identified the corresponding recommendation (marked *පැ 02*) to issue the requested license. She has also testified that she, as the secretary, was not authorised to sign the license, but the appellant as the Chairman was authorised to do so.

16. It is clear that neither PW01, nor his wife have possessed a license to operate a mobile fish trading business when PW01 was confronted by the appellant as detailed in the charges. However, an application for such a license had been submitted and duly processed. The appellant's signature was the only remaining requirement for the license to be issued. Given these circumstances it could be inferred that the appellant referenced to such pending license, as well as solicited and accepted, as a gratification, the sum of money in exchange for affixing his signature.

17. Accordingly, the prosecution has established that the appellant in his capacity as a public servant solicited and accepted a gratification of LKR 25,000.00 to perform a duty as such public servant.

18. Furthermore, although the incident mentioned in the charges is not detailed, it has not misled the appellant. This becomes evident when the court delves into circumstances that can inferred from the HC proceedings. This allowance is provided for in Section 166 of the Code of Criminal Procedure Act No. 15 of 1979 as follows;

> **166.** Any error in stating either the offence or the particulars required to be stated in the charge and any omission to state the offence or those particulars shall not be regarded at any stage of the case as material, unless the accused was misled by such error or omission.

19. In those circumstances I am disinclined to interfere with the conviction, disputed judgement and the sentencing order and proceed to set aside the same.

20. I dismiss the appeal.

    I make no order regarding costs.

    Appeal dismissed.

21. The Registrar of this Court is directed to send a copy of this judgement to the High Court in Colombo for compliance.

Judge of the Court of Appeal

B. Sasi Mahendran, J.

I agree

Judge of the Court of Appeal